COPACKING SERVICES AGREEMENT

This COPACKING SERVICES AGREEMENT (this "**Agreement**") is entered into as of November 10, 2020 (the "**Execution Date**") with an effective date of April 1, 2018 (the "**Effective Date**") by and between **COCA-COLA BEVERAGES SOUTH AFRICA (PTY) LTD** ("**Copacker**"), having its principal place of business located at 15 Axle Road, Clayville, Olifantsfontein, Gauteng, 1666, South Africa and **MONSTER ENERGY LIMITED** ("**MEL**"), a legal entity duly incorporated and existing under the laws of Ireland, having its registered location of business at South Bank House, Barrow Street, Dublin 4, and doing business in South Africa through its Affiliate (as defined below), **MONSTER ENERGY BEVERAGE COMPANY OF SOUTH AFRICA (PTY) LTD** ("**MEBCSA**"), a legal entity duly incorporated and existing under the laws of South Africa, having its registered address at Unit 3 Meadowbrook Business Estate, Jacaranda Avenue, Olivedale Ext 18, Randburg 2158, South Africa (collectively with MEL, "**Monster**"). Copacker and Monster are collectively referred to herein as the "parties," who agree as follows:

1. Recitals. This Agreement is entered into with reference to the following recitals of essential facts:

1.1. MEL is a wholly owned indirect subsidiary of Monster Energy Company, a legal entity duly incorporated and existing under the laws of Unites States of America, having its registered location at 1 Monster Way Corona, CA 92879 ("**MEC**"). MEC and/or its Affiliates (as defined below) own the exclusive right, title and interest in and to the Trademarks (as defined below). MEL and MEBCSA have been authorized by MEC to use the Trademarks (as defined below) and manufacture, promote, market, distribute and sell, including without limitation through third parties appointed by MEL and/or MEBCSA, the Products (as defined below).

1.2. Copacker is engaged in the business of producing and bottling beverage products at the Bottling Facility (as defined below).

1.3. Monster desires that Copacker perform the services of producing and bottling/canning the Products (as defined below) for Monster under MEC and/or its Affiliates' trademarks, trade names, trade dress, service marks, slogans, symbols and logos designated by Monster and set forth on Exhibit A and all marks, names, slogans, symbols, logos, and trade dress confusingly similar thereto (collectively, the "**Trademarks**").

1.4. In connection with manufacturing, production and supply services (similar to those contemplated herein) ("**Canners Services**") provided to Monster by Coca-Cola Canners of Southern Africa (Pty) Limited ("**Canners**") prior to the Effective Date, Monster made the Prepayment (as defined below) on behalf of Canners in order to assist Canners with the purchase of the Gauteng Equipment and Works (as defined below) to be used in the provision of the Canners Services.

1.5. Copacker acquired the business and assets (including the Gauteng Equipment and Works (as defined below)) and assumed the liabilities of Canners with effect from the Effective Date (the "**Acquisition**").

1.6. In connection with the transactions contemplated hereby, Monster expects, but shall not be obligated, to make further capital investments (in addition to the Prepayment) in order to assist Copacker regarding manufacturing, packaging and supply of the Products.

1.7. The parties are desirous of entering into this Agreement pursuant to which Copacker shall perform the services of producing certain Products (as defined below), in accordance with the Recipes (as defined below) and Product Specifications (as defined below) to be supplied by Monster, all in accordance with the terms and conditions set forth in this Agreement.

2. Definitions.

2.1. "**Affiliates**" means as to any Person, any other Person that, directly or indirectly through one or more intermediaries, controls or is controlled by or is under common control with such Person.

2.2. "**Bottling Facilities**" means the land, buildings, warehouse, plant equipment and other facilities located at one or more facility/ies, owned, and/or operated by Copacker and used for the production of beverage products identified on attached Exhibit B, which may be amended from time to time by written agreement of the parties. For the avoidance of doubt, a reference to a "Bottling Facility" shall be deemed a reference to each of the Bottling Facilities.

2.3. "**Finished Case Goods**" means Products produced, bottled, canned or filled, packed and made ready for delivery and sale to customers pursuant to this Agreement.

2.4. "**Governmental Entity**" means any (a) nation, state, county, city, town, village, district, or other jurisdiction of any nature, (b) federal, state, local, municipal, foreign, or other government, (c) governmental or quasi-governmental authority of any nature (including any governmental agency, branch, department, official, or entity and any court or other tribunal), or (d) body exercising, or entitled to exercise, any administrative, executive, judicial, legislative, police, regulatory, or taxing authority or power of any nature.

2.5. "**Ingredient(s)**" means sweeteners, preservatives, acidulates, CO2, supplements, flavor components and extracts, water and all other components that are combined to produce the Products, as specified on Exhibit B.

2.6. "**Packaging Material(s)**" means can bodies, can ends, bottles, caps, labels, cartons, shrink film, trays and all other components used to package the Products, as specified on Exhibit B.

2.7. "**Person**" means an individual or firm, corporation, partnership, trust, incorporated or unincorporated association, joint venture, limited liability company, joint stock company, government (or an agency or subdivision thereof) or other entity of any kind.

2.8. "**Production/Produce**" means the processing, filling and/or bottling/canning of Products following the Recipe provided by Monster and meeting the agreed upon Product Specifications.

2.9. "**Production Run(s)**" means an order by Monster for the continuous bottling of a scheduled quantity of each Product size, flavor and package.

2.10. "**Product(s)**" means flavored and non-flavored, carbonated and non-carbonated, beverages set forth on Exhibit B, as may be amended from time to time upon mutual written agreement of the parties, and Produced in accordance with the Product Specifications and sold under the Trademarks.

2.11. "**Product Specification(s)**" means the chemical scores (the various components of) to which the Products should conform, as specified by Monster in writing, in consultation with Copacker, which Product Specifications may be amended from time to time upon written agreement by the parties.

2.12. "**Recipe(s)**" means the composition of the Products as prescribed by Monster.

2.13. "**Term**" means the Initial Term of this Agreement and any Additional Terms, as set forth in Section 3 below.

3. Term.

3.1. Initial Term. Unless terminated by either party pursuant to the terms of this Agreement, the initial term of this Agreement shall commence on the Effective Date and shall end on July 2nd, 2021 (the "**Initial Term**").

3.2. Additional Term(s). Subject to the provisions of Section 16, after the Initial Term, this Agreement shall be renewed automatically for up to three (3) successive five (5) year terms (each, an "**Additional Term**").

4. Production of Products; Copacker's Duties; Logistics.

4.1. Production of Products. Copacker agrees to Produce the Products in accordance with the Recipes and Product Specifications, and make available the Products for Monster, all in accordance with the terms and conditions of this Agreement.

4.2. Copacker's Duties. Copacker will:

4.2.1. at all times maintain sufficient manufacturing capacity, and stocks of Products, Copacker supplied Ingredients and Packaging Materials, Monster supplied Ingredients and Packaging Materials, and any other materials and packaging required to perform its obligations and to enable Copacker to meet relevant forecast requirements of the Products in accordance with Section 9.1 below;

4.2.2. use identification codes for the Products and install, maintain and use the necessary machinery and equipment required for the application of such identification codes and the production records to be maintained by Copacker;

4.2.3. only prepare and package the Products at the Bottling Facility; and

4.2.4. provide competent personnel, and provide and maintain the Bottling Facility, to ensure its obligations pursuant to this Agreement can be met and it will ensure that at all times the Bottling Facility is in good and proper working order, in compliance with all applicable laws and regulations, including, without limitation, the laws of South Africa and any other territories and/or locations in which the Products will be sold (collectively, the "**Jurisdictions**").

4.3. Logistics and Ancillary Services. Copacker will provide the following services to Monster:

4.3.1. manufacturing, packaging, storage, handling and delivery of the Products in accordance with this Agreement;

4.3.2. production planning and materials forecasting, planning and call-off;

4.3.3. supplier management and materials sourcing for the Ingredients and Packaging Materials;

4.3.4. production and stock management;

4.3.5. order capture, logistics service provision; and

4.3.6. haulage to the dispatch point in the county of sale.

5. Packaging Materials and Ingredients.

5.1. Copacker Packaging Materials and Ingredients. Copacker shall supply the Ingredients and Packaging Materials set forth in Exhibit B and such additional Ingredients and Packaging Materials as may be mutually agreed to in writing by Copacker and Monster from time to time in accordance with the then current price sheet provided by Copacker to Monster.

5.2. Monster Ingredients and Packaging Materials. Monster shall make available to and order for Copacker prior to the start of any Production Run, all Ingredients and Packaging Materials to be supplied by Monster as set forth on Exhibit B as needed for the packaging of such Products requested for a Production Run. Copacker will use Monster supplied Ingredients exclusively for the Production of the Products in accordance with this Agreement, or as otherwise authorized in writing by Monster. Copacker will not sell, transfer or in any way dispose of Monster supplied Ingredients or Packaging Materials to third parties without the prior written consent of Monster, which consent may be withheld, conditioned or delayed in Monster's sole and absolute discretion.

5.3. Capital Investment.

5.3.1. Gauteng Capital Investment.

(a) The parties acknowledge that Monster paid Twenty-One Million Three Hundred Thousand and 00/100 South African Rand (ZAR 21,300,000.00) (the "**Prepayment**") on behalf of Canners as a pre-payment for the purchase of certain equipment and works in accordance with the dates and amounts set forth in the table below, the details of which are set out in Section 1 of Exhibit C (the "**Gauteng Equipment and Works**") in order to assist Canners in making certain improvements to the Gauteng Bottling Facility in order to carry out its obligations in providing the Canners Services.

Date	**Payment**
April, 2016	ZAR 9,400,000.00
August, 2016	ZAR 9,700,000.00
February, 2017	ZAR 1,100,000.00
November, 2017	ZAR 1,100,000.00

(b) Copacker hereby agrees and covenants that, as of the Effective Date and continuing thereafter, it assumed any and all rights, liabilities, duties and obligations of Canners in relation to the Canners Services, the Prepayment and the Gauteng Equipment and Works, whether such rights, liabilities, duties and obligations arose prior to, on or after the Effective Date, and agrees to perform all such obligations from and after the Effective Date.

(c) The parties acknowledge and agree that in consideration for the Prepayment, Canners paid Monster (as a credit) R 3.01 per 4-pack case of Finished Case Goods Produced using the Gauteng Equipment and Works for the first Seven Million Seventy-Six Thousand Four Hundred Twelve (7,076,412) 4-pack cases of Finished Case Goods Produced by Canners until the Prepayment was repaid in full. The parties further acknowledge that as of July 10, 2019 the Prepayment was paid in full by Canners by credit note ("**Repayment Date**").

(d) The parties further acknowledge and agree that title in and to the Gauteng Equipment and Works (i) transferred to Canners upon the Repayment Date and (ii) thereafter automatically transferred to Copacker as a result of the Acquisition. To the extent required by applicable law, upon Copacker's reasonable request and at Copacker's expense, Monster shall take such action and execute such document/s as may be necessary to assign or otherwise transfer title in and to the Gauteng Equipment and Works to Copacker.

5.3.2. Durban Capital Investment.

(a) Effective as of the Execution Date, in order to assist Copacker in carrying out its obligations under this Agreement, Copacker acknowledges and agrees that it will purchase the Durban Equipment and Works (as defined in Exhibit C), which Copacker has estimated, in good faith, the cost shall not exceed Forty-One Million Three Hundred Thousand and 00/100 South African Rand (ZAR 41,300,000.00) (the "**Estimated Improvement Cost**"), of which Monster shall contribute an amount equal to the Monster Investment (as defined on Exhibit C) in accordance with the terms and conditions of this Agreement and as set forth on Exhibit C. Any costs incurred by Copacker in excess of the Monster Investment shall be the sole responsibility of Copacker.

(b) Notwithstanding anything to the contrary in this Agreement, but subject to Monster's security interest in the Durban Equipment and Works as set forth on Exhibit C, the parties agree that (a) title to the Durban Equipment and Works shall vest in, and remain with, Copacker during the Term and shall remain with Copacker upon the termination of this Agreement and (b) Copacker's use of the Durban Equipment and Works for any purpose other than the Production of the Products shall not impede Copacker's compliance with to the terms and conditions of this Agreement.

5.4. Ownership.

5.4.1. Packaging Materials and Ingredients Ownership. Monster shall maintain ownership of all Ingredients and Packaging Materials supplied by Monster to Copacker.

5.4.2. Ownership of the Finished Case Goods. Upon completion of each respective Production Run, and the issuance of a valid invoice for the Toll Fee/s (as defined below), Monster shall retain title to all Finished Case Goods that have been Produced in accordance with the terms and conditions of this Agreement.

6. Storage/Warehousing Fee. Reasonable inventories of Ingredients, Packaging Materials and Finished Case Goods shall be held by Copacker in accordance with terms set forth on Exhibit D.

7. Quality Standards and Specifications.

7.1. Standards and Specifications Compliance. Copacker shall Produce, package, and ship Products and store the Ingredients, Packaging Materials and Finished Case Goods in strict compliance with (a) the Recipes, Product Specifications, and all applicable regulations promulgated under GNR1769 of 9 August 1985 (soft drinks regulations) in terms of the Foodstuffs, Cosmetic & Disinfectants Act, 1972 (as amended) ("FCD Act") (collectively, the "Regulations"), and all other applicable laws and regulations in effect in the Republic of South Africa as of the date of this Agreement and as each may be amended from time to time, including the laws of South Africa and any Jurisdictions, and otherwise prevailing industry cGMP's (collectively, the "**cGMPs**"), and all applicable local laws and regulations in effect as of the date of this Agreement and as each may be amended from time to time and (b) Monster's (i) Quality Assurance Standards, which shall be provided by Monster to Copacker separately and (ii) Quality Control Standards, which shall be provided by Monster to Copacker separately. Copacker shall install, verify, validate and maintain equipment, manufacturing system software, and pest control and sanitation practices in strict compliance with all applicable laws and

regulations in effect as of the date of this Agreement and as they may be amended from time to time. Copacker shall (A) promptly notify Monster in writing if any modifications and/or changes are made to any manufacturing and packaging equipment used to Produce the Products that may affect Product quality and (B) provide to Monster all change control documents, and (C) obtain Monster's prior written consent, which consent may be withheld in Monster's sole and absolute discretion, before making any changes to Copacker's critical control points (as determined by Monster in its sole discretion) affecting the Products. Monster may revise the Product Specifications between Production Runs with the prior written consent of Copacker, which consent will not be unreasonably withheld.

7.2. Audits.

7.2.1. Quality Assurance Audit.

Copacker represents and warrants that its Bottling Facility is registered with the appropriate local authority and certified and registered to Foundation FSSC 22000 as a Beverage Producer in in accordance with the FSSC 22000 mark. Copacker agrees that it must successfully pass Monster's quality systems audit with a minimum score of eighty-five percent (85%) and the timing of such audit will be determined by Monster in Monster's sole and absolute discretion. The frequency of any additional audits will be based on Monster's business needs and/or Copacker's prior final audit scores. Monster reserves the right to perform unannounced audits based on quality compliance concerns, as determined by Monster in its sole discretion. In lieu of Monster performing an audit, in some cases, Monster may accept an accredited Global Food Safety Initiative ("**GFSI**") certification or other third party GMP certification, in either case in Monster's sole and absolute discretion. Should an accredited GFSI certification be used in lieu of the Monster audit, Copacker shall provide the final certificate, full audit report and associated corrective actions to Monster.

7.2.2. Governmental Entity Audits. If the Bottling Facility is subject to audit by any Governmental Entity for any reason, Copacker shall immediately provide Monster written notice of any such audit. If any such audit involves the Products, Ingredients, Packaging Materials, Product Specifications, and/or Recipes and Copacker is required to provide samples and/or any Confidential Information (as defined below), Copacker shall provide Monster (a) written notice prior to providing any such samples or Confidential Information and (b) an identical set of any samples provided to the Governmental Entity.

7.3. Quality Representation and Warranty. Copacker represents and warrants that the manufacture, storage and handling of the Ingredients and Packaging Materials and the Production, storage and handling of the Finished Case Goods will take place under conditions that conform to applicable law and the highest quality standards of sound storage, handling, mixing, bottling, canning, manufacturing, sanitation and safety practices in the soft drink, energy drink and juice manufacturing industries.

8. Maximum Loss Allowance.

8.1. Loss Allowance. Subject to Section 8.2 and Section 8.3 below, Copacker shall be allowed losses actually, directly and solely incurred by Copacker on Ingredients and Packaging Materials supplied by Monster ("**Production Losses**") of up to the amount of the Loss Allowance (as defined below) in the normal course of Production of the Products in accordance with the Recipes and Product Specifications, provided, however, that (a) such Production Losses are properly and accurately documented and verified to Monster, and (b) in no event shall such Production Losses exceed a maximum percentage loss allowance as set forth on Exhibit B for each Ingredient and each Packaging Material (each a "**Loss Allowance**"), in either case, on a per Ingredient and/or Packaging Material basis. Any Production Losses reported by Copacker shall be determined and accounted for by Copacker to Monster on a calendar quarterly basis and Monster shall have the right at any time during the Term to reasonably request or perform an audit(s) of any and all Production Losses reported by Copacker. Each such audit shall be conducted by Copacker or Monster, at Monster's choosing and at Monster's initial cost. Upon completion of an audit, if the audit reveals excessive Production

Losses reported by Copacker then Copacker shall immediately reimburse Monster for Production Losses above the Loss Allowance(s) and Copacker shall pay or reimburse Monster for the costs and expenses of such audit. For the avoidance of any doubt, and notwithstanding anything to the contrary in this Agreement, Monster shall have no liability for, and Copacker shall have no right, claim or remedy against Monster for, any losses, expenses or other detriment incurred by Copacker in the normal course of Production of the Products, unless such losses are solely attributable to Ingredients and/or Packaging Materials supplied by Monster to Copacker.

8.2. Unacceptable Goods. If Ingredients of unacceptable quality, based on Copacker's reasonable, customary and well-established standards, Recipes, Product Specifications, and/or any applicable laws and regulations, are received from Monster and reasonably rejected by Copacker for use during any Production Run, Copacker shall notify Monster in writing and immediately report to Monster quantities of such Ingredients and Monster shall deduct that amount for purposes of calculating Copacker's maximum Loss Allowance. Monster shall be responsible for the disposal costs of such unacceptable Ingredients. Should the Products fail to meet the Recipes, Product Specifications and/or any applicable laws and regulations, for any reason including, but not limited to, Copacker's negligence and/or Copacker's use of Ingredients, Packaging Materials and/or any other component(s) of the Product of an unacceptable quality/quantity in any Production Run, Copacker shall immediately notify Monster in writing and report to Monster all quantities of such unacceptable Ingredients, work in progress and/or Finished Case Goods and Copacker shall be responsible for any and all costs related to or associated with the spoiled Ingredients, Packaging Materials, and/or Finished Case Goods including, but not limited to costs of Monster supplied Ingredients, Packaging Materials, and Monster's warehousing, transportation and storage costs. Copacker shall confirm identification of, and check for shipping damage to, all received Ingredients and/or Packaging Materials prior to use. Copacker's identification of all Ingredients and/or Packaging Materials shall include, at a minimum, verification of the Certificate Of Analysis (COA) as compared to the container label. Notwithstanding the foregoing, other than as under the relevant cGMPs, Copacker shall not be responsible for testing of Monster's Ingredients and/or Packaging Materials.

8.3. Maximum Loss Allowance/Minimum Run Requirement. The maximum Loss Allowance referred to in Section 8.1 above shall apply to any Production Run equal to or greater than the Minimum Run Requirement (as defined below). The maximum Loss Allowance shall not apply to any Production Run less than the Minimum Run Requirement. For any Production Run that is less than the Minimum Run Requirement, Monster agrees to pay the actual usage on all Packaging Materials and Ingredients on such Production Runs that are less than the Minimum Run Requirement, provided Copacker will guarantee that the loss will not exceed the allowance that would have applied had such Production Run been equal to the Minimum Run Requirement.

9. Bottling.

9.1. Production Schedule. On or before the Effective Date, and thereafter from time to time, Copacker and Monster shall agree in writing upon Production schedules for the Products in terms of quantity, package size, and flavor mix.

9.2. Production Planning. Copacker will provide Monster with all manufacturing, shipping and receiving documents at the end of each applicable business day. All Production Runs shall be in accordance with the Minimum Run Requirement (defined below) established by Copacker.

9.3. Amendment to Production Schedule. Monster agrees that Copacker in its sole discretion, may change the production schedule upon five (5) business day's prior written notice to Monster, but may not however, delay the Production by more than five (5) business days, without obtaining the express prior written agreement of Monster. If the Production is postponed for more than five (5) business days, for any reason, Monster, in its sole and absolute discretion, may elect to cancel or reschedule the Production.

Monster acknowledges that it shall inform Copacker of such cancellation or rescheduling as soon as practicable.

9.4. Minimum Run Requirement. All Production Runs must conform to Copacker's minimum run requirement of the number of cases set forth on Exhibit B (a "**Minimum Run Requirement**") and minimum flavor of the number of cases of Finished Case Goods set forth on Exhibit B, rounded to formula yield unless otherwise agreed in writing between the parties.

10. [INTENTIONALLY OMITTED]

11. Fees.

11.1. Toll Fee/s. In consideration of the services provided by Copacker under this Agreement, Monster shall pay to Copacker the fees set forth in Exhibit E (the "**Toll Fee/s**"). Payment of the Toll Fees shall be due and payable within thirty (30) calendar days after Monster's receipt of a valid invoice from Copacker following Production. Confirmation of the Toll Fees shall be invoiced weekly upon completion of each Production Run. The Toll Fees referred to herein are exclusive of all federal, state and local sales, goods, services and similar taxes which shall be the responsibility of Monster. Copacker shall provide to Monster written notification not less than thirty (30) calendar days of any changes to the Toll Fees referred to herein due to direct increases/decreases in costs actually incurred and documented by Copacker for the Products. The Toll Fee provided in this Section 11 shall be the full and exclusive payment, compensation and/or reimbursement of any nature due to Copacker for its performance and obligations under this Agreement.

11.2. Equipment Fee. Effective as of the Execution Date, in consideration of Copacker incurring the Improvement Cost, Monster shall pay Copacker the Equipment Fee in accordance with the provisions set forth on Exhibit C attached hereto and incorporated herein.

12. Covenants, Warranties and Representations.

12.1. Copacker Covenants, Representations and Warranties. Copacker covenants, represents and warrants to Monster that:

12.1.1. It is a limited liability company duly organized and validly existing under the laws of South Africa.

12.1.2. It has all necessary corporate power, authority and capacity and is properly authorized and licensed to enter into this Agreement and to perform its obligations hereunder and the execution and delivery of this Agreement and the performance of the transactions contemplated hereby have been duly authorized by it.

12.1.3. The execution, delivery and performance of this Agreement will not cause or require Copacker to breach any obligation to, or agreement or confidence with, any other person or entity.

12.1.4. As a result of the Merger (a) Canners merged with and into Copacker, (b) Copacker acquired the business and assets (including the Gauteng Equipment and Works) of Canners, and (c) Copacker assumed all liabilities, duties and obligations (including, without limitation, any liabilities arising out of or relating to the Canners Services, the production of Products prior to the Effective Date, the Prepayment and/or the Gauteng Equipment and Works) of Canners, whether such liabilities, duties and obligations arose prior to, on or after the Effective Date, and covenants to perform all such obligations from and after the Effective Date

12.1.5. It has all applicable experience, expertise and resources to, and shall Produce, package, and ship the Products and store the Ingredients, Packaging Materials and Finished Case Goods in strict

compliance with the Recipes, Product Specifications, Monster's current warehousing standards for the Ingredients, Packaging Materials and Finished Case Goods, the highest standards otherwise prevailing in the soft drink industry, and all applicable laws and regulations in South Africa and any Jurisdiction/s, and as they may be amended from time to time.

12.1.6. It has, and during the Term shall maintain, all applicable licenses required to satisfy its obligations under this Agreement.

12.1.7. All Packaging Materials shall be subject to Copacker's proper handling and processing, all in accordance with the cGMP specifications set forth in Section 7.1.

12.1.8. If at any time Copacker becomes aware that Monster's Product Specifications Ingredients or Packaging Materials are not in compliance with all applicable laws and regulations in force, and as they may be amended from time to time, Copacker shall notify Monster as soon as possible.

12.1.9. The Production of the Products and the services provided by Copacker under this Agreement will not infringe the proprietary or intellectual property rights of any third party.

12.1.10. Copacker is not aware of any claim that the Products or the services contemplated under this Agreement infringe or violate, or will infringe or violate, any proprietary or intellectual property right.

12.2. Monster Covenants, Representations and Warranties. Monster covenants, represents and warrants to Copacker that:

12.2.1. MEL is a legal entity duly incorporated and validly existing under the laws of Ireland.

12.2.2. MEBCSA is a legal entity duly incorporated and validly existing under the laws of South Africa.

12.2.3. It has all necessary corporate power, authority and capacity and is properly authorized and licensed to enter into this Agreement and to perform its obligations hereunder, and the execution and delivery of this Agreement and the performance of the transactions contemplated hereby have been duly authorized by it.

12.2.4. All Product Specifications, Ingredients and Packaging Materials supplied by Monster to Copacker, pertaining to the Products, shall comply with all applicable laws and regulations in force, and as they may be amended from time to time.

12.2.5. It has, and during the Term shall maintain, all applicable state licenses required to satisfy its obligations under this Agreement.

12.2.6. The Product Specifications, Patents, Copyrights, Know-How and Trademarks used to produce the Products by Copacker under this Agreement Monster's instance will not infringe the proprietary or intellectual property rights of any third party.

13. Limitation of Warranty. THE PARTIES MAKE NO, AND EXPRESSLY DISCLAIMS ANY, REPRESENTATIONS OR WARRANTIES, EXPRESS OR IMPLIED (INCLUDING THE IMPLIED WARRANTIES OF NON-INFRINGEMENT, MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE), EXCEPT THOSE SET FORTH IN THIS AGREEMENT.

14. Trademarks; Proprietary Information and Confidentiality.

14.1. Trademarks.

14.1.1. Copacker acknowledges and agrees that MEC and/or its Affiliates own all right, title, and interest in and to the Trademarks, whether or not registered, artwork, patents, patent applications, and all rights in inventions (whether or not patentable) (collectively, "**Patents**"), copyrights and copyrightable material (collectively, "**Copyrights**") and trade secrets and know-how (collectively, "**Know-How**") which MEC and/or its Affiliates may have at any time created, adopted, used, registered, and/or been issued in the United States of America, South Africa any Jurisdiction/s or in any other location in connection with Monster's business or the Products and Copacker shall not do, or cause or permit to be done, any acts or things contesting or in any way impairing or tending to impair any portion of MEC's right, title, and interest in and to the Patents, Copyrights, Know-How, and Trademarks. Any approval by Monster for Copacker to use any Patents, Copyrights, Know-How, and Trademarks in connection with the Production of the Products shall be a mere temporary permission, uncoupled with any right or interest, and without payment of any fee or royalty charge for such use.

14.1.2. Copacker shall not use any trademark, name, brand name, logo or other production designation or symbol in connection with Products other than the Trademarks, subject to the terms of this Section 14.1. Copacker acknowledges that it has no right, title or interest in the Patents, Copyrights, Know-How, and Trademarks (except as expressly permitted hereunder) and that any use by Copacker of the Trademarks will inure solely to MEC's benefit. Copacker may only use the Trademarks in strict accordance with Monster's policies and instructions, and Monster reserves the right, from time to time and at any time, at its discretion, to modify such policies and instructions then in effect.

14.1.3. Any proposed use by Copacker of the Patents, Copyrights, Know-How, and Trademarks (to the extent that it either has not been previously approved by Monster in writing or differs materially from a use previously approved by Monster in writing) shall be subject to the prior written consent of Monster, which Monster may withhold in its sole and absolute discretion. Copacker shall submit to Monster in writing each different proposed use of the Trademarks in any medium.

14.1.4. Copacker shall not at any time alter the Patents, Copyrights, Know-How, and Trademarks or the packaging of Products, use the Trademarks for any purpose other than the Production of Products hereunder, or challenge the validity, or do or refrain from doing any act which might result in impairment of the value, of the Patents, Copyrights, Know-How, and Trademarks. Copacker shall not cause or permit its business name to include any of the Trademarks or its business to otherwise be operated in any manner which suggests any association with any of the Trademarks or with Monster.

14.1.5. Upon the termination of this Agreement, the temporary permission granted under sub-Section 14.1.1 above will terminate and Copacker shall immediately cease and desist from any use of the Trademarks, Patents, Copyrights and Know-How.

14.1.6. Copacker shall not acquire or attempt to acquire, for itself or for others, any rights in or to the Patents, Copyrights, Know-How, and Trademarks, either through registration or use. All rights granted to Copacker concerning the Patents, Copyrights, Know-How, and Trademarks are personal to Copacker, and are not assignable or sublicensable. Copacker shall not grant or attempt to grant any rights in or to the Patents, Copyrights, Know-How and Trademarks, to any other Person.

14.1.7. If Monster, for the purposes of this Agreement, should reasonably require that, in accordance with applicable laws governing the registration and licensing of intellectual property, Copacker be recorded as a registered user or licensee of the Trademarks then, at the request and expense of Monster,

Copacker will execute any and all agreements and such other documents as may be necessary for the purpose of entering, varying or canceling the recordation.

14.2. Proprietary Information.

For the purpose of this Agreement, "**Proprietary Information**" means all Trademarks, Know-How, Copyrights, Patents, concepts, Recipes, Product Specifications, formulas, standards, procedures, new product ideas, manufacturing processes, techniques, methods, systems, designs, pricing, sale projections, production volumes, research, computer programs, development or experimental work, clients, suppliers, companies, service providers and the like.

14.3. Copacker acknowledges and agrees that all Proprietary Information provided or used by Monster and/or its Affiliates (the "**Monster Group**") shall at all times be and remain the exclusive property of the Monster Group and this Agreement shall not in any manner constitute a license of Copacker to use such Proprietary Information ("**Monster Proprietary Information**"), except to the extent required to satisfy its obligations under this Agreement.

14.4. Monster acknowledges and agrees that, other than Proprietary Information of the Monster Group, all Proprietary Information relating to the business of Copacker provided or used by Copacker and/or its Affiliates (the "**CCBA Group**") shall at all times be and remain the exclusive property of the CCBA Group and this Agreement shall not in any manner constitute a license of Monster to use such Proprietary Information ("**Copacker Proprietary Information**"), except to the extent required to satisfy its obligations under this Agreement.

14.5. Confidentiality. At all times during the Term and thereafter, the parties agree not to disclose to any third party, nor use for any purpose other than in connection with the performance of the services pursuant to this Agreement:

14.5.1. Any confidential information provided by either party to the other party including without limitation the Proprietary Information.

14.5.2. Any information the parties have received from each other or others which is confidential or proprietary, whether or not marked as "confidential."

14.5.3. Any confidential or Proprietary Information which is circulated within Copacker or Monster via its internal mail system or otherwise.

14.5.4. The form, substance and/or terms of this Agreement.

(collectively, 14.3.1 through 14.3.4 above, the "**Confidential Information**")

The obligation not to use or disclose any of the Confidential Information shall not apply to any information that: (a) is in the public domain except through any intentional or negligent act or omission of the non-disclosing party (or any agent, employee, shareholder, director, officer, or independent contractor of or retained by such other party or any of its Affiliates); (b) can be shown by clear and convincing tangible evidence to have been in the possession of the non-disclosing party prior to disclosure by the disclosing party; (c) is legally and properly provided to the non-disclosing party without restriction by an independent third party that is under no obligation of confidentiality to the disclosing party and that did not obtain such information in any illegal or improper manner or otherwise in violation of any agreement with the disclosing party; (d) is disclosed without any restrictions of any kind by the disclosing party to third parties on a regular basis without any measures being taken, whether explicitly or implicitly, by the disclosing party to protect the confidentiality of such information; or (e) is independently generated by any employee or independent contractor of or retained by the non-disclosing party as evidenced by written records, and such employee or independent contractor has no

knowledge of any of such Confidential Information. Notwithstanding the foregoing, the parties agree that any such Confidential Information may be disclosed as required by applicable law or an order by a Governmental Entity or any requirements of stock market or exchange or other regulatory body having competent jurisdiction; provided, that, except where prohibited by law, the recipient will give the disclosing party reasonable advance notice of such required disclosure, and will reasonably cooperate with the disclosing party, in order to allow the disclosing party an opportunity to oppose, or limit the disclosure of such Confidential Information or otherwise secure confidential treatment of such Confidential Information required to be disclosed; provided, further, that if disclosure is ultimately required, the recipient will furnish only that portion of such Confidential Information which, based upon advice of legal counsel, the recipient is required to disclose in compliance with any such requirement.

14.6. Copacker Books and Records. Monster agrees that all business records and documents, including, but not limited to, notes, manuals, images, photographs or the like, and any copies thereof, provided to Monster by Copacker or kept by Monster relating solely to the business of Copacker shall remain the property of Copacker. Monster agrees that upon termination of this Agreement, Monster shall immediately cease using and surrender and deliver to Copacker all of the property and other materials in its possession, or in the possession of any person or entity under its control, that relate, directly or indirectly, to any Confidential Information of Copacker, including without limitation, all personal notes, drawings, manuals, documents, photographs, videos, and computer disks and software and any copies thereof; provided, that Monster shall not be obligated to deliver to Copacker, and Monster shall be entitled to retain, any samples, records, Product test results or information, or any other documentation or information related to the Products and/or the quality of the Ingredients, Packaging Materials, or Products after the termination of this Agreement.

14.7. Monster Books and Records. Copacker agrees that all business records and documents, including, but not limited to, notes, manuals, photographs, images, or the like, and any copies thereof, provided to Copacker by Monster or kept or made by Copacker relating to the business of Monster and/or the Products shall remain and/or become the property of Monster. Copacker agrees that upon termination of this Agreement, Copacker shall immediately cease using and surrender and deliver to Monster all of the property and other materials in its possession, or in the possession of any person or entity under its control, that relate, directly or indirectly, to any Confidential Information or to the business of Monster and/or the Products, including without limitation, all personal notes, drawings, manuals, documents, photographs, videos, and computer disks and software and any copies thereof.

15. Indemnification, Damages, Insurance.

15.1. Monster Indemnification. Copacker agrees to defend, indemnify and hold Monster and its officers, directors, agents, employees, shareholders, legal representatives, successors and assigns, and each of them, harmless from loss, liability, costs, damages, or expenses from any and all claims, actions and suits, instituted by any third party, whether groundless or otherwise, and from and against any and all third party claims, liabilities, judgments, losses, damages, costs, charges, attorney's fees, and other expenses of every nature and character (collectively, in this paragraph referred to as "**Losses**") arising out of, due to, or in any way connected with (a) the Production of the Products by Copacker, including, but not limited to all Losses arising out of, due to, or in any way connected with any Ingredients, Packaging Materials or other substances furnished by Copacker, (b) any act, omission or failure to act, by Copacker , Copacker's employees, agents, representatives, sub-contractors and suppliers which is in violation of Copacker's obligations under this Agreement (c) any Copacker Proprietary Information and/or confidential information, and/or (d) any and all rights, liabilities, duties and obligations of Canners and/or Copacker in relation to the Canners Services, the production of the Products prior to the Effective Date, the Prepayment and/or the Gauteng Equipment and Works, whether such rights, liabilities, duties and obligations arose prior to, on or after the Effective Date; provided, however, that in no event shall Copacker be liable under this paragraph for Losses resulting from the gross negligence or willful or reckless misconduct of Monster or its employees, agents, or representatives.

15.2. Copacker Indemnification. Monster agrees to defend, indemnify and hold Copacker and its officers, directors, agents, employees, shareholders, legal representatives, successors and assigns, and each of them, harmless from loss, liability, costs, damages, or expenses from any and all claims, actions and suits, instituted by any third party, whether groundless or otherwise, and from and against any and all third party claims, liabilities, judgments, losses, damages, costs, charges, attorney's fees, and other expenses of every nature and character (collectively, in this paragraph referred to as "**Losses**") on account of (a) the death of and/or injury to any person(s) or damage to any property arising out of, due to, or in any way connected with any Ingredients or Packaging Materials furnished by Monster and/or (b) any act, omission or failure to act by Monster, its employees, agents, representatives or sub-contractors which act, omission or failure to act is in violation of Monster's obligations under this Agreement and/or (c) the Monster Proprietary Information relating to the Products; provided however that in no event shall Monster be liable under this paragraph for Losses resulting from the gross negligence or willful or reckless misconduct of Copacker or its employees, agents, or representatives.

15.3. Trademarks. If during the Term or thereafter a third party institutes against Monster or Copacker any claim or proceeding that alleges that the use of the Trademarks used solely in connection with the Production of the Products under this Agreement infringes the intellectual property rights held by such third party, then Monster shall, in its sole discretion, and at its sole expense, contest, settle, and/or assume direction and control of the defense or settlement of, such action, including all necessary appeals thereunder. Copacker shall use all reasonable efforts to assist and cooperate with Monster in such action, subject to Monster reimbursing Copacker for any reasonable out-of-pocket expenses incurred by Copacker in connection with such assistance and cooperation. If, as a result of any such action, a judgment is entered by a court of competent jurisdiction, or settlement is entered by Monster, such that any Trademarks cannot be used in connection with the Production of the Products under this Agreement without infringing upon the intellectual property rights of such third party, then Monster and Copacker shall promptly cease using such affected Trademarks in connection with the Production of the Products under this Agreement. Except as otherwise specified in this Agreement, neither party shall incur any liability or obligation to the other party arising from any such cessation of the use of the affected Trademarks.

15.4. Intellectual Property. If during the Term or thereafter a third party institutes against Monster or Copacker any claim or proceeding that alleges that: (i) any aspect of Production of the Finished Case Goods; (ii) any aspect of the manufacturing or packing of the Finished Case Goods; (iii) any aspect of making Products ready for delivery and sale to customers; and/or (iv) use, manufacture, sale, offer for sale, distribution, or import of any of the Packaging Materials (excluding the Trademarks), infringes any intellectual property or proprietary rights held by such third party, then Copacker will indemnify, defend (with counsel of Monster's choice) and hold harmless Monster, its Affiliates and their respective officers, directors and employees from and against any and all costs, claims, expenses, losses, causes of action (including, but not limited to, attorneys' fees and court costs), damages or liabilities. Monster shall use all reasonable efforts to assist and cooperate with Copacker in such action, subject to Copacker reimbursing Monster for any reasonable out-of-pocket expenses incurred by Monster in connection with such assistance and cooperation.

15.5. Limitation of Liability.

15.5.1. EXCEPT FOR DAMAGES DIRECTLY RESULTING FROM INDEMNITY OBLIGATIONS PROVIDED IN SECTIONS 15.1, 15.2, 15.3 AND 15.4 ABOVE, NOTWITHSTANDING ANY OTHER TERM OR CONDITION OF THIS AGREEMENT, NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, PUNITIVE, SPECIAL, EXEMPLARY, CONSEQUENTIAL OR INCIDENTAL LOSSES OR DAMAGES. IN ADDITION, NEITHER PARTY SHALL BE LIABLE FOR LOST PROFITS, LOSS OF GOODWILL, BUSINESS INTERRUPTION, LOSS OF BUSINESS OPPORTUNITY, OR ANY OTHER PECUNIARY LOSS SUFFERED BY THE OTHER RELATED TO OR ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT, THE TRANSACTIONS CONTEMPLATED BY THIS AGREEMENT, AND/OR FROM ANY OTHER

CAUSE WHATSOEVER, EVEN IF IT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

15.5.2. EACH AND EVERY PROVISION OF THIS AGREEMENT WHICH PROVIDES FOR A LIMITATION OF LIABILITY OR WARRANTIES, DISCLAIMER, OR EXCLUSION OF DAMAGES, IS EXPRESSLY INTENDED TO BE SEVERABLE AND INDEPENDENT FROM ANY OTHER PROVISION, SINCE THOSE PROVISIONS REPRESENT SEPARATE ELEMENTS OF RISK ALLOCATION BETWEEN THE PARTIES, AND SHALL BE SEPARATELY ENFORCED.

15.5.3. EXCEPT FOR ANY RECOURSE SPECIFICALLY PROVIDED FOR UNDER THE TERMS OF THIS AGREEMENT, COPACKER'S SOLE AND EXCLUSIVE REMEDY FOR ANY BREACH BY MONSTER OF ANY PROVISION, COVENANT OR REPRESENTATION UNDER OR ARISING FROM THIS AGREEMENT SHALL BE TO TERMINATE THIS AGREEMENT PURSUANT TO SECTION 16.1.2 BELOW AND TO RECOVER THE BALANCE DUE, IF ANY, OF THE TOLL FEE DUE TO COPACKER IN ACCORDANCE WITH SECTION 11 ABOVE.

15.6. Insurance. Each of the parties shall maintain and keep in full force and effect Comprehensive General Liability Insurance in reference to their respective obligations and liabilities hereunder including coverage for personal injury, product liability and contractual liability insuring it and the other party and their officers, directors, representatives, agents and employees in the amount of Five Million and 00/100 Dollars ($5,000,000 USD) aggregate. Monster shall be named as an Additional Insured under the Comprehensive General Liability Insurance of Copacker, which insurance shall also include a Waiver of Subrogation in favor of Monster and at least thirty (30) days' notice of termination to any Additional Insured. These requirements shall be satisfied by endorsements to the Comprehensive General Liability Insurance of Copacker. In addition, Copacker shall maintain in full force and effect the following insurance policies naming Monster as an Additional Insured, including a Waiver of Subrogation and at least thirty (30) days' notice of termination to Monster: (a) Product Contamination and Recall Expense coverage in favor of Monster by endorsement with a limit of not less than One Million and 00/100 Dollars ($1,000,000 USD); (b) insurance of a type and with coverage sufficient to provide adequate coverage for the full value of Monster's Ingredients, Packaging Materials, Finished Case Goods, and other personal property stored or used at the Bottling Facility; including, but not limited to, Personal Property of Others, equivalent to the Finished Case Goods value; (c) Employee Dishonesty Coverage and (d) Personal Property of Others in Transit coverage equivalent to not less than One Hundred Fifty Thousand and 00/100 Dollars ($150,000 USD) to include Copacker's own vehicles and those of third party common carriers Copacker may use for transporting the Finished Case Goods. It is further agreed that within seven (7) days of the execution of this Agreement each party shall furnish the other with evidence of the insurance required herein in the form of a certificate issued by an insurance carrier with the appropriate endorsements included. Such certificates must provide that there shall be no change in the areas of liability or contractual assumptions or reduction of the above referenced limits or cancellations of the insurance. Cancellation verbiage from the policies shall be provided with the Certificate of Insurance and endorsements. Additionally, notification of coverage reduction or cancellation shall be provided if applicable to each party as specified in each party's respective policy language.

16. Default and Termination.

16.1. Termination by Either Party. This Agreement may be terminated in the following circumstances:

16.1.1. by mutual written consent of Monster and Copacker;

16.1.2. by the non-breaching party in the event one party fails to cure a material breach of any obligations under this Agreement and where such material breach is not cured within thirty (30) days after

written notice of such breach has been given by the non-breaching party to the breaching party (no such termination shall relieve the defaulting party from any liability in connection with such breach);

16.1.3. at any time upon written notice by one party if the other party has a controlling interest in its outstanding shares of stock, membership interests, or other interests entitled to vote, including without limitation, by merger or operation of law, sold, assigned, conveyed or otherwise transferred; provided however that either party shall have the right to assign its rights and/or obligations pursuant to this Agreement to any Affiliate; provided that upon any such transfer such transferee agrees in writing to be bound by the terms of this Agreement, and any such transferee shall be deemed to be included within the defined term "Monster" and "Copacker" for purposes of this Agreement;

16.1.4. at any time upon written notice if the other party sells, assigns, exchanges, transfers or otherwise disposes of (in one transaction or a series of transactions) all or substantially all of its assets;

16.1.5. at any time upon written notice if the other party files or has filed against it a petition in bankruptcy, is adjudicated insolvent or bankrupt, makes a general assignment for the benefit of creditors, or has a receiver or trustee appointed for it or for the administration of its assets; or

16.1.6. by either party at any time, at will, without cause or reason or for no cause or reason, and without liability upon two (2) months prior written notice to the other party.

16.2. Termination by Monster. Monster may terminate this Agreement at any time upon written notice, and such termination will be effective immediately upon Copacker's receipt of such notice, if: (a) Copacker attempts to sell, assign, delegate or transfer any of its rights and/or obligations under this Agreement without having obtained Monster's prior written consent thereto, (b) any law or regulation is adopted or in effect which would restrict Monster's termination rights of this Agreement, (c) any law or regulation is adopted or in effect which would invalidate any material provision of this Agreement and which in Monster's sole and absolute discretion, cannot be remedied by amending the Agreement, or (d) Copacker commences any proceeding relating to the enforcement or interpretation of this Agreement other than in accordance with this Agreement.

16.3. Effect of Termination. With effect from the termination date of this Agreement:

16.3.1. Copacker shall not produce further Finished Case Goods or make use of the Trademarks, Know-How, Copyrights, Patents or any other Monster supplied Ingredients and/or Packaging Materials used or intended for use by Copacker in connection with the preparation of the Finished Case Goods for Monster.

16.3.2. Promptly upon Monster's reasonable request and at Monster's expense, take such action and execute such document/s as may be necessary to assign or otherwise transfer to Monster or Monster's designee, any registrations, licenses, permits, certificates, and governmental approvals that Copacker may have acquired in connection with, and only to the extent it solely relates to, the registration and/or production of Products contemplated pursuant to this Agreement, in each case subject to and to the extent permissible under applicable law.

16.3.3. Copacker shall, at Monster's request and expense, take such reasonable action as is necessary to terminate Copacker's registration as Monster's copacker, and/or an authorized importer of Products and/or holder of any health certificate, product registration/s, and/or import permit with respect to the Products, with any Governmental Entity, in each case subject to applicable law and Copacker shall cooperate in good faith with Monster in assigning or otherwise transferring to Monster (as determined is appropriate by Monster), or in Monster's sole discretion, to a third party designee, any such registration or approval including, without limitation, any licenses, permits, certificates, and governmental approvals (or the

functional equivalent in the applicable territory) that Copacker may have acquired in connection with carrying out its obligations under this Agreement.

16.3.4. Any termination of this Agreement in accordance with or pursuant to this Section 16 shall not result in the terminating party (excluding any party terminating in breach of this Agreement) incurring any obligation or liability of whatsoever nature and howsoever arising including, without limitation any obligation or liability for any claim or loss (including loss of profits or good will), costs, damages or expenses (whether general, special, direct, indirect, incidental, consequential or punitive).

17. Payment upon Termination. In the event this Agreement is terminated:

17.1. Monster shall be responsible for, and shall make payment, within fifteen (15) business days after presentation of a valid and duly issued invoice, to Copacker for, any inventory of Finished Case Goods, Packaging Materials and Ingredients which Monster required Copacker to purchase for the Production of Products, excepting those Ingredients and Packaging Materials used by Copacker in the production of its own beverage products (i.e. water, certain sweeteners, CO2, preservatives, shrink film, pallet slip sheets and the like) that may be diverted to and used in production of products for other customers of Copacker.

17.2. Copacker shall be responsible for, and make payment, within fifteen (15) business days after presentation of a valid and duly issued invoice, to Monster for, any inventory of commonly used Packaging Materials and Ingredients which were purchased by Monster for the Production of Products and may be diverted to and used in production of products for other customers of Copacker.

17.3. Copacker shall not have the right to possess or sell all or any part of the Finished Case Goods to offset any monies owed by Monster.

17.4. Effective as of the Execution Date, if at any time prior to the full payment of the Monster Investment this Agreement:

17.4.1. (i) is terminated by Copacker in accordance with Section 16.1.2 through 16.1.5, (ii) is terminated by Monster in accordance with Section 16.1.6, or (iii) is not renewed for an Additional Term prior to the expiration of the Initial Term, Monster shall pay to Copacker the Remaining Balance (as defined on Exhibit C);

17.4.2. is terminated by either party in accordance with Section 16.1.1, Monster shall pay to Copacker fifty percent (50%) of the Remaining Balance; or

17.4.3. (i) is terminated by Monster in accordance with Section 16.1.2 through 16.1.5 and/or 16.2; or (ii) is terminated by Copacker in accordance with Section 16.1.6, Monster shall have no obligation to pay to Copacker any of the Remaining Balance.

17.5. Any payment required pursuant to Sections 17.4.1 or 17.4.2 above shall be made by Monster to Copacker within thirty (30) days of receipt of a valid invoice from Copacker and the accompanying documentation supporting Copacker's calculation of the Remaining Balance.

18. Notice. Any notice required or permitted to be given hereunder shall be in writing and may be given by serving personally or mailing the same by an internationally recognized overnight carrier or, by sending the same by electronic mail or of the similar form of communication, and such notice shall be sufficiently given if addressed to:

If to Copacker: Coca-Cola Beverages South Africa Proprietary Limited
15 Axle Drive, Clayville

Olifantsfontein, Gauteng, 1666
South Africa
Attention: CCBA Head of Legal

Email: legal@ccbagroup.com

If to Monster: Monster Energy Beverage Company of South Africa (Pty) Ltd
Monster House, 7 Hight Street, Cowley Business Park, Uxbridge UB82AD, United Kingdom
Attention: Legal Department

With a copy to: Monster Energy Limited
c/o Monster Energy Company
1 Monster Way
Corona, CA 92879
Telephone: (951) 739-6200
Attention: Legal Department
Email: legal@monsterenergy.com

Solomon Ward Seidenwurm & Smith LLP
401 B Street, Suite 1200
San Diego, California 92101
Telephone: (619) 231-0303
Attention: Norman L. Smith, Esq.
Email: nsmith@swsslaw.com

Any such notice shall be deemed to have been received on the date on which it is delivered if served personally or by electronic mail or other similar form of communication or on the third (3rd) business day following mailing, if sent by registered mail, unless there is an interruption of postal service in which case it shall be deemed to have been received on the third (3rd) business day following resumption of postage service.

19. Anti-Bribery Compliance.

19.1. Copacker shall:

19.1.1. comply with all applicable laws, statutes, regulations, and codes relating to anti-bribery and anti-corruption including, to the extent applicable, the Bribery Act 2010 (England and Wales) and the United States Foreign Corrupt Practices Act ("**Relevant Requirements**");

19.1.2. comply with Monster's generally applicable Ethics, Anti-bribery and Anti-corruption Policies and the relevant industry codes on anti-bribery, in each case, that are provided to Copacker and as Monster or the relevant industry body may update them from time to time upon written notice to Copacker ("**Relevant Policies**").

19.1.3. have and shall maintain in place throughout the term of this Agreement, its own policies and procedures to ensure compliance with the Relevant Requirements and the Relevant Policies, and will enforce them where appropriate;

19.1.4. to the extent permitted under applicable law, promptly report to Monster any request or demand for any undue financial or other advantage of any kind in violation of applicable law received by Copacker in connection with the performance of this Agreement; and

19.1.5. to the extent permitted under applicable law, immediately notify Monster (in writing) if it becomes aware that a foreign public official becomes an officer or employee of Copacker or acquires a direct or indirect interest in Copacker (and Copacker warrants that, to its knowledge, it has no foreign public officials as officers, employees or direct or indirect owners at the date of this Agreement).

19.2. Copacker shall use reasonable efforts to require that all of its agents and subcontractors who perform services or provide goods in connection with this Agreement do so only on the basis of a written contract which imposes on and secures from such persons terms consistent with those imposed on Copacker in this Section 19.

20. Product Recall.

20.1. If any Governmental Entity issues a recall or any law or regulation requires a recall or similar action, in each case in connection with the Ingredients and/or Packaging Materials used in the Production of Products, Copacker shall immediately advise Monster of the circumstances by telephone and electronic mail. In no event shall Copacker initiate or participate in a recall or similar action without the express written consent of Monster. If Copacker is required to conduct a recall of the Products or any other product produced in the Bottling Facility, Copacker shall immediately notify Monster in writing and provide Monster with sufficient information to permit Monster to confirm that the Ingredients, Packaging Materials, Products and/or Production of the Products have not been impacted or affected in any manner.

20.2. If any Governmental Entity issues a recall or takes similar action in connection with the Products, Ingredients and/or Packaging Materials used in the Production of Products, or if Monster determines that an event, incident or circumstance has occurred which may require a recall or market withdrawal, Monster shall advise Copacker of the circumstances by telephone or facsimile. Monster shall have the right to control the arrangement of any such recall, and Copacker shall cooperate in the event of a recall with respect to the reshipment, storage or disposal of recalled Products, Ingredients and/or Packaging Materials used in the Production of Products, the preparation and maintenance of relevant records and reports, and notification to any recipients or end users. The party responsible for causing the condition giving rise to the recall shall pay all reasonable expenses incurred by the other party of such a recall, including the costs of destroying Products, Ingredients and/or Packaging Materials used in the Production of Products.

20.3. Copacker, shall promptly refer to Monster for exclusive response to all customer or consumer complaints involving the health, safety, quality, composition or packaging of the Products, or which in any way could be detrimental to the image or reputation of Monster or the Products, and shall notify Monster of any governmental, customer or consumer inquiries regarding the Products about which Copacker becomes aware.

21. Supplier Code of Conduct. At all times, this Agreement will be subject to, and Copacker will adhere to, the Supplier Code of Conduct of MEC's parent company, as amended from time to time and available at: https://www.monsterbevcorp.com/sc-conduct.php.

22. Publicity. Monster and Copacker each agree that the initial public, written announcements regarding the execution of this Agreement and the subject matter addressed herein shall be coordinated between the parties prior to release. Thereafter, each party agrees to use commercially reasonable efforts to consult with the other party regarding any public, written announcement which a party reasonably anticipates would be materially prejudicial to the other party. Nothing provided herein, however, will prevent either party from (a) making and continuing to make any statements or other disclosures it deems required, prudent or desirable under applicable Federal or State Securities Laws (including without limitation the rules, regulations and directives of the Securities and Exchange Commission) and/or such party's customary business practices, or (b) engaging in oral discussions or oral or written presentations with actual or prospective investors or analysts regarding the subject matter of this Agreement, provided no Confidential Information is disclosed. If a party

breaches this Section 22 it shall have a seven (7) day period in which to cure its breach after written notice from the other party. A breach of this Section 22 shall not entitle a party to damages or to terminate this Agreement.

23. Assignment. Copacker shall not transfer or assign this Agreement or any interest in this Agreement, either voluntarily or by operation of law or otherwise, without the prior written consent of Monster, which consent may be withheld, conditioned or delayed at Monster's sole and absolute discretion. If Monster does grant such consent, Copacker will remain liable for the performance of this Agreement unless the parties agree otherwise in writing. Any attempted transfer or assignment by Copacker without prior consent of Monster shall be null and void and shall permit Monster, at its option, to immediately terminate this Agreement. Monster may assign this Agreement upon notice to Copacker.

24. Force Majeure. Failure of either party to perform any of its obligations under this Agreement as a result of reasons beyond its reasonable control, including but not limited to, strikes, labor disputes, suits, fire, acts of God, acts or orders of any government relating to civil disturbances or war, shall not constitute default or breach of this Agreement; provided, however, that if such an event shall prevent Copacker from performing hereunder during a period of ninety (90) calendar days during which all or part of a Production Run is scheduled, Monster, at its option, may terminate this Agreement by giving thirty (30) calendar days written notice to Copacker.

25. No Waiver. No waiver of any provision hereof or of any terms or conditions will be effective unless in writing and signed by the party against which enforcement of the waiver is sought. No relaxation or indulgence which either party may grant to the other shall in any way prejudice or be deemed to be a waiver or novation of any of such party's rights under this Agreement.

26. Independent Contractors. The parties acknowledge and confirm that in performing their obligations under this Agreement, each is acting as an independent contractor and they are not and shall not be considered as joint venturers, partners, agents, franchisors/franchisees, or employers/employees of each other and neither shall have the power to bind or obligate the other or contract in the other's name.

27. Entire Agreement. This Agreement and the attached Exhibits contain the entire agreement between the parties to this Agreement with respect to the subject matter of this Agreement, are intended as a final expression of such parties' agreement with respect to such terms as are included in this Agreement, are intended as a complete and exclusive statement of the terms of such agreement, and supersede all negotiations, stipulations, understandings, agreements, promises, representations and warranties, whether written or oral, if any, with respect to such subject matter, which precede the execution of this Agreement. No other negotiations, stipulations, understandings, agreements, promises, representations, or warranties, whether written or oral, either as an inducement to enter into this Agreement or as to its meaning or effect, have been made that are not contemplated herein.

28. Interpretation. In the event any ambiguity or question of intent or interpretation arises, this Agreement shall be construed as drafted jointly by the parties and no presumption or burden of proof shall arise favoring or disfavoring any party by virtue of the authorship of any of the provisions of this Agreement. No provision of this Agreement shall be construed against any party on the grounds that such party or its counsel drafted that provision.

29. Partial Invalidity. Each provision of this Agreement will be valid and enforceable to the fullest extent permitted by law. If any provision of this Agreement or the application of the provision to any Person or circumstance will, to any extent, be invalid or unenforceable, the remainder of this Agreement, or the application of the provision to Persons or circumstances other than those as to which it is held invalid or unenforceable, will not be affected by such invalidity or unenforceability, unless the provision or its application is essential to this Agreement. The parties shall replace any invalid and/or unenforceable provision with a valid

and enforceable provision that most closely meets the aims and objectives of the invalid and/or unenforceable provision.

30. Records and Audit Rights.

30.1. Copacker agrees to (a) maintain complete and accurate books and other records (i) regarding Products Produced under this Agreement and (ii) containing data in sufficient detail sufficient to enable Monster to determine all Toll Fees, Prepayment, and/or Equipment Fees due under this Agreement, in each case in a form reasonably satisfactory to Monster (the "**Records**"); and (b) shall maintain such Records for a period of at least three (3) years following the expiration or earlier termination of this Agreement.

30.2. No more than once per calendar quarter, Monster shall have the right, upon at least ten (10) business days' notice to Copacker, to have the Records (and all related work papers and other information and documents whether stored in tangible or intangible form, including any books, records and accounts, in any way related to the Products, the Gauteng Equipment and Works, and the Durban Equipment and Works examined by an internationally recognized public accounting firm appointed by Monster (in each case, an "**Accounting Firm**") to (a) verify the calculations of the Toll Fees, Prepayment, Equipment Fees, , and/or any component thereof, (b) verify any resulting payments required under this Agreement and (c) identify and quantify any discrepancy ("**Discrepancy**") in Copacker's calculation of the Toll Fees, Prepayment, and/or Equipment Fees or any component thereof for the period examined. Prior to conducting any such examination, the Accounting Firm shall have agreed to hold in confidence and not disclose to anyone, other than the parties or unless required by applicable law, all information reviewed by or disclosed to the Accounting Firm during such examination.

30.3. In the event any Discrepancy is determined the amount thereof shall be paid by the applicable party to the party to which the Discrepancy is owed within seven (7) days of demand and Monster shall be entitled to an additional inspection during the applicable quarter. In addition, the cost of any such audit will be borne by Monster; provided; that Copacker shall reimburse Monster for the amount of Monster's costs and expenses incurred in conducting the audit if the results of such audit indicate a Discrepancy due by Copacker of two percent (2%) or more between the amount owed for Toll Fees, Prepayment, and/or Equipment Fees for the period examined as per the Accounting Firm and the amount previously claimed or specified by the party calculating such Toll Fees, Prepayment, and/or Equipment Fees.

31. Governing Law. This Agreement shall be governed by and interpreted in accordance with the laws of England and Wales, and the provisions of the United Nations Convention On Contracts For The International Sale Of Goods will expressly be excluded and not apply. The place of the making and execution of this Agreement is London, United Kingdom. Copacker hereby waives any rights that it may otherwise have to assert any rights or defenses under the laws of South Africa or any Jurisdiction/s or to require that litigation brought by or against it in connection with this Agreement be conducted in the courts or other forums in South Africa or any Jurisdiction/s.

31. Arbitration

32.1 Subject to the provisions of Section 32.2, any dispute, controversy, or claim arising out of or relating to this Agreement, including without limitation any question regarding the formation, validity, interpretation, enforcement, breach, or termination of this Agreement, or whether a dispute, controversy, or claim arising out of or relating to this Agreement is arbitrable, shall be referred to and finally resolved by binding arbitration under the Rules (the "**Rules**") of the London Court of International Arbitration ("**LCIA**") . The Rules are deemed to be incorporated by reference into this Section. The seat, or legal place, of the arbitration shall be London and the language to be used in all arbitral proceedings shall be English. Except as provided in the next sentence, the arbitration tribunal shall consist of one (1) arbitrator to be appointed by the LCIA Court. In the event (i) the total amount demanded in all claims and counterclaims (collectively, "**Claims**") in the arbitral

proceedings (1) equals or is greater than One Million Dollars ($1,000,000) or (2) have not been asserted or specified in such Claims (or the Claims are non-monetary in nature), or (ii) if prior to the appointment of the Tribunal, a party seeks to challenge the jurisdiction of the arbitrator(s) or determine whether a dispute, controversy, or claim arising out of or relating to this Agreement is arbitrable, the arbitration tribunal shall consist of a panel of three (3) arbitrators to be appointed by the LCIA Court. The parties agree that this Section and all proceedings relating to any matter referred to in this Section shall be exclusively governed by, and determined in accordance with, the laws of England and Wales (whether the Claims advanced in such dispute are contractual or non-contractual in nature), and the provisions of the United Nations Convention On Contracts For The International Sale Of Goods will be expressly excluded and not apply. No arbitration commenced pursuant to this Agreement may be consolidated with the arbitration of any other dispute and the arbitrator(s) appointed hereunder shall not have the power to hear any arbitration as part of a class action notwithstanding, in either case, the existence of common issues of law and/or fact, or the possibility of conflicting rulings by more than one arbitrator. The parties expressly waive the right, if any, to consolidated and/or class arbitration under this section and this Agreement.

32.2 Notwithstanding the provisions of Section 32.1 above, Monster may at its sole option and in its absolute discretion bring proceedings in the courts of England and Wales to the extent necessary to maintain, preserve, protect, and/or enforce Monster's rights under or with respect to the Trademarks, and in that case the courts of England and Wales will have exclusive jurisdiction to determine the dispute, controversy, or claim submitted and Copacker agrees to submit to the jurisdiction of such courts if Monster brings such proceedings. This Section 32.2 is for the benefit of Monster. If an arbitration has already been initiated in relation to such dispute, controversy, or claim in accordance with Section 32.1 prior to the commencement of such court proceedings by Monster, then it is agreed that, on the demand of Monster, such arbitration is to be discontinued immediately. Such demand constitutes Monster's immediate withdrawal of its consent to arbitrate with regard to that particular dispute, controversy, or claim and it is agreed that any arbitration tribunal already appointed, or to be appointed, shall no longer have any jurisdiction in respect of that particular dispute, controversy, or claim.

32. Controlling Language. This Agreement is in the English language only, which will be controlling in all respects. No translation, if any, of this Agreement into any other language will be of any force or effect in the interpretation of this Agreement or in a determination of the intent of either party hereto.

33. Survival of Warranties and Indemnifications and Confidentiality. The warranties, representations, and indemnification obligations contained in this Agreement shall continue in full force and effect notwithstanding any expiration or other termination of the Agreement. Section 14.3 (Confidentiality) shall survive the termination of this Agreement.

34. Amendment. Except to the extent otherwise expressly permitted by this Agreement, no amendment of, or addition to, this Agreement shall be effective unless reduced to a writing executed by the duly authorized representatives of both parties.

35. Further Assurances. Each party to this Agreement will execute all instruments and documents and take all actions as may be reasonably required to effectuate this Agreement.

36. Effectiveness. This Agreement shall only become effective when it has been executed by both Monster and Copacker.

37. Counterparts. This Agreement may be executed in any number of counterparts, each of which shall be deemed to be an original, but all of which together shall constitute one document.

[Remainder of page intentionally left blank]
[Signatures on next page]

IN WITNESS WHEREOF, this Agreement has been executed by the parties as of the date and year first above written.

COCA-COLA BEVERAGES SOUTH AFRICA (PTY) LTD

Signature: _____
Print Name: Walter Leonhardt
Title: Financial Director - CCBSA

MONSTER ENERGY BEVERAGE COMPANY OF SOUTH AFRICA (PTY) LTD

Signature: Hilton Schlosberg (Mar 8, 2021 22:37 PST)
Print Name: Hilton Schlosberg
Title: Director

MONSTER ENERGY LIMITED

Signature: Hilton Schlosberg (Mar 8, 2021 22:37 PST)
Print Name: Hilton Schlosberg
Title: Vice Chairman

EXHIBIT A

Trademarks

MONSTER
MONSTER ENERGY
UNLEASH THE BEAST!
MONSTER REHAB
REHAB
REHAB THE BEAST!
MONSTER KHAOS
KHAOS
MONSTER ENERGY ABSOLUTELY ZERO
ABSOLUTELY GUARANTEED!
MONSTER ASSAULT
MONSTER ASSAULT ENERGY
ASSAULT
VIVA LA REVOLUTION!
MONSTER ENERGY ULTRA
UNLEASH THE ULTRA BEAST!
MONSTER ENERGY ULTRA RED
MONSTER ENERGY ULTRA SUNRISE
ULTRA SUNRISE
MONSTER ENERGY MUCHO LOCO
MONSTER MUCHO LOCO
MUCHO LOCO

EXHIBIT B

Bottling Location, Products and Packaging Materials for Production, Loss Allowance and Minimum Run Requirement

BOTTLING FACILITIES:	15 Axle Road, Clayville, Olifantsfontein, Gauteng, 1666, South Africa 17 Premier Place, Phoenix Industrial Park, Phoenix, Durban.
PRODUCT SIZE:	**500ml** **330ml**
PRODUCTS:	**MONSTER ENERGY ZA** **MONSTER REHAB ZA** **MONSTER KHAOS ZA** **MONSTER ABSOLUTELY ZERO ZA** **MONSTER ASSAULT ZA** **MONSTER ENERGY ULTRA ZA** **MONSTER ENERGY ULTRA RED ZA** **MONSTER ENERGY ROSSI ZA** **MONSTER ULTRA SUNRISE ZA** **MONSTER ENERGY LH44 ZA** **MONSTER MUCHO LOCO ZA** **MONSTER ENERGY TZ** **MONSTER ROSSI MZ** **MONSTER KHAOS MZ** **MONSTER ENERGY MZ**
PRODUCT CASE COUNT:	**6x4 pack**

Copacker Packaging Materials and Ingredients:	Certain sweeteners, water, shrink film, preservatives, CO2 and production, can bodies, ends and trays.
Monster Ingredients and Packaging Materials:	Flavor components and extracts, supplements, sucralose certain sweeteners & preservatives.
Loss Allowance:	two percent (2.0%) per Ingredient one and one-half percent (1.5%) for each Packaging Material
Minimum Run Requirement	_____ (_____) cases minimum flavor of _____ (_____)

MONSTER AB ZERO 6X4	5004
MONSTER ASSAULT 6X4	5838

MONSTER DOCTOR 6X4	10770
MONSTER KHAOS 6X4	5469
MONSTER L/HAM 6X4	9875
MONSTER MUCHO LOCO 6X4	11497
MONSTER ORIGINAL 6X4	13320
MONSTER PIPELINE PUNCH 6X4	5685
MONSTER REHAB 6X4	6672
MONSTER ULTRA PARADISE 6X4	6000
MONSTER ULTRA RED 6X4	7470
MONSTER ULTRA SUN 6X4	6000
MONSTER ULTRA VIOLET 6X4	6000
MONSTER ULTRA ZERO 6X4	6000

EXHIBIT C

Capital Investment

The terms and conditions of this Exhibit C shall be effective as of the Execution Date.

1. Gauteng Equipment and Works.

Gauteng Equipment and Works

Plant (Wadeville) - Line 1	
Description	Cost
Overwrapper, Printed 4 packs shrinkfilm application	21 300 000

In order to assist Copacker to carry out its obligations under this Agreement, Copacker agrees to purchase the Durban Equipment and Works set forth below.

2. Durban Equipment and Works.

The Durban Equipment and Works is as follows:

Durban Equipment and Works

Capital Investment - Premier Place			
Monster Capability & Syrup Room		**Rand**	**US$**
lab Equipment (HPLC & Refractometer)		2,500,000	178,571
Ingredient weighing		300,000	21,429
Civils including Fees - syrup room		3,000,000	214,286
Blend Tanks		2,500,000	178,571
Dextrose Handling		2,500,000	178,571
Drum Handling		1,000,000	71,429
CIP - plant upgrade including Hot Water		6,000,000	428,571
RO Plant		8,000,000	571,429
Low level tank Mixing on Existing Tanks		600,000	42,857
Freezer Storage Upgrade		1,500,000	107,143
Racking		2,000,000	142,857
UV for Simple Syrup - Sure Pure		1,500,000	107,143
Contimol		2,000,000	142,857
Quarantine Space for Monster		3,991,500	285,107
Project Management		800,000	57,143
Sub Total		38,191,500	2,727,964
Contingency @8%		3,055,320	218,237
Total Syrup Room & Warehouse		**41,246,820**	**2,946,201**

3. Depreciation. The parties agree that Copacker shall be entitled to claim all depreciation deductions related to the Durban Equipment and Works.

4. Maintenance; Risk of Loss. Copacker shall bear all risk of loss of and damage to the Durban Equipment and Works. Copacker shall, at its own expense, insure all Durban Equipment and Works with full and extended coverage for all losses and for its full replacement value. As and when it is commercially reasonable to do so, Copacker shall, at its sole cost and expense, maintain, repair, refurbish and replace the Durban Equipment and Works.

5. Monster Investment. In consideration for the improvements made to the Durban Bottling Facility by Copacker and on the condition that Copacker Produces sufficient stock of Products to fulfil Monster's monthly sales requirements and/or maintains the required stock holding of Finished Case Goods as determined by Monster in its sole discretion, Monster agrees to pay Copacker an amount not to exceed Forty-One Million Three Hundred Thousand and 00/100 South African Rand (ZAR 41,300,000.00) (the "**Monster Investment**") in accordance with the terms of this Agreement and this Section 5 of this Exhibit C. Within a reasonable time following purchase and installation of the Durban Equipment and Works by Copacker, at Monster's request, Copacker shall deliver to Monster copies of invoices accurately documenting and certifying Copacker's payment for the Durban Equipment and Works (the "**Actual Improvement Cost**") and evidence that such invoices relate solely to the purchase of the Durban Equipment and Works. Following an opportunity to validate such invoices, if Monster determines that the Actual Improvement Cost is less than the Estimated Improvement Cost, then the Monster Investment shall be reduced by the difference between the Estimated Improvement Cost and the Actual Improvement Cost. For example, if the Actual Improvement Cost is ZAR 41,000,000.00 and the Estimated Improvement Cost is ZAR 41,300,000.00, then the Monster Investment shall be reduced to ZAR 41,000,000.00.

6. Payment of the Monster Investment. With effect from the date upon which the Durban Equipment and Works is fully commissioned, approved by Monster and used to produce a batch of Products to the satisfaction of Monster ("**Installation Date**"), Monster agrees to pay Copacker the Monster Investment in quarterly installments in the amount of **Four Million Three Hundred Thousand and 00/100 South African Rand (ZAR 4,300,000.00)** (the "**Equipment Fee**") at the end of each calendar quarter of the Term from the Installation Date until the Monster Investment is paid in full, subject to any reduction of the Monster Investment in accordance with Section 5 above. At the end of each calendar quarter of the Term after the Installation Date, Copacker shall submit to Monster a written invoice in the amount of the Equipment Fee for the applicable calendar quarter. Monster shall pay Copacker the Equipment Fee within thirty (30) days of receipt of such invoice.

7. Security Interest – Grant; Perfection. As security for the full, punctual and final payment of the Monster Investment, the Copacker hereby grants to Monster a present security interest in and to the Collateral (as defined below) during the Term. The Copacker will hold the Collateral subject and subordinate to the rights of Monster. Monster may at its sole and absolute discretion and cost take any action it deems appropriate to protect its security interest in the Collateral, including without limitation, affixing identifying marks, tags or stickers on the Collateral from time to time; filing and maintaining a financing statement and amendments thereto describing the Collateral and containing any other information required by applicable law, including, without limitation the applicable Uniform Commercial Code (the "**UCC**"); and filing any other necessary documents and/or other instruments to perfect, preserve and enforce the security interest granted hereunder. The Copacker also irrevocably appoints Monster as its lawful attorney-in-fact coupled with an interest with full authority solely and exclusively to execute and file financing statements and any other necessary documents and other instruments to perfect, preserve, and enforce its security interest. "**Collateral**" means (a) all of the Copacker's right, title and interest in and to the Durban Equipment and Works, including without limitation, all of its proceeds, products, replacements, additions, parts, and improvements and (b) all proceeds arising from the collection, sale, lease, exchange, assignment or other disposition of, or realization upon, any item or portion of the Collateral.

8. Security Interest – Covenants. The Copacker warrants and covenants to Monster that (a) the Collateral will be kept at the Bottling Facility and will not be removed from the Bottling Facility without the written consent of Monster, which consent may be withheld, conditioned or delayed at Monster's sole and absolute discretion; and (b) the Copacker shall: (i) not sell, dispose, or otherwise transfer the Collateral or any interest therein without the prior written consent of Monster; (ii) keep the Collateral free and clear from unpaid charges (including rent), taxes, legal processes, liens or any encumbrances whatsoever (except any liens or encumbrances placed thereon, directly or indirectly, by Monster); (iii) take all necessary steps to defend the Collateral against claims and demands of others; (iv) promptly notify Monster in writing of any event which materially and adversely affects or is likely to affect the value of the Collateral; (v) maintain the security interest granted hereunder as a valid and enforceable lien on and security interest in the Collateral; (vi) accurately and regularly account for the Collateral and make it and all records relating to the Collateral available to Monster; and (vii) at all times allow Monster full access to the Collateral.

9. Termination of the Agreement; Remaining Balance.

The Remaining Balance shall be calculated as follows: **B** = **C**-**N**

Where:

B is the Remaining Balance of the Monster Investment to be paid by Monster.

C is the total amount of the Monster Investment, less any reduction in accordance with Section 5 above.

N is the aggregate total of Equipment Fee paid by Monster to Copacker as of the date of termination of this Agreement.

10. Set Off. Monster may set off any amount payable to Copacker under this Agreement, including this Exhibit C, from any amount payable by Copacker to Monster.

EXHIBIT D

Warehousing, Direct Shipping, Invoicing

Shipping:	Monster to make payment for and arrangements for all freight for Product pick-ups.
Container Loading:	Not applicable
Warehouse Fee:	Copacker agrees to hold, at no additional charge to Monster, Finished Case Goods inventories for a minimum of thirty (30) calendar days after the Production of each scheduled Production Run and Copacker shall thereafter have the right to charge Monster a warehousing fee to be agreed between the parties acting reasonably on the basis of a per full pallet of Finished Case Goods per month commencing on the thirty-first (31st) calendar day after the Production of the scheduled Production Run.
Shipping/Invoicing:	Co-Packer will ship directly to Monster's designee and invoice Monster directly at a cost of R203 per 24-pack case of Finished Case of Sugar Free Products and R204 per 24-pack case of Finished Case of full Sugar Products, unless otherwise authorized in writing by Monster.

EXHIBIT E

Pallets: To be agreed from time to time. Pallets for export market stocks are transferred onto the MEBCSA CHEP account. Local market stocks/pallets are managed by the Copacker.

HPLC/Brix Testing: Pricing includes standard quality testing which includes, but is not limited to, Brix, CO2, Microbiology, pH and Acidity. Where applicable, for caffeinated and preserved products, Copacker must perform HPLC testing of defined Monster attributes. If Copacker is not equipped to perform HPLC testing, Copacker shall be responsible for costs associated to third party testing thereof.

Toll Fee/s:

Material	Product	2019 Pricing
103489	Monster Assault ZA (Material 103489)	80.35
101433	Monster Energy (Material 101433)	80.38
103332	Monster Absolutely Zero (Material 103332)	67.65
103052	Monster Khaos (Material 103052)	72.17
103548	Monster Rossi (Material 103548)	79.76
101518	Monster Rehab (Material 101518)	68.58
105624	Monster Ultra (Material 105624)	67.85
105625	Monster Ultra RED (Material 105625)	67.85
105626	Monster Ultra SUNRISE (Material 105626)	67.85
105733	Monster Energy (Material 105733)	81.39
103488	Monster Assault ZA (Material 103488)	80.61
101480	Monster Energy (Material 101480)	80.63
103331	Monster Absolutely Zero (Material 103331)	67.90
103053	Monster Khaos (Material 103053)	72.42
106287	Monster Rossi (Material 106287)	80.09
101972	Monster Rehab (Material 101972)	68.90
105470	Monster Ultra (Material 105470)	68.11
105471	Monster Ultra RED (Material 105471)	68.11
105472	Monster Ultra SUNRISE (Material 105472)	68.11
106504	Monster Lewis Hamilton (Material 106504)	73.02
106701 Assa	Monster Energy (Material 106701) Assassin Creed	80.80
106873	Monster Energy Tanzania (Material 106873)	80.63
107710	MONSTER ENERGY MZ 6/4/500ML (Material 107710)	80.63
107712	MONSTER KHAOS MZ 6/4/500ML (Material 107712)	72.42
107711	MONSTER ROSSI MZ 6/4/500ML (Material 107711)	80.09
-108030	MONSTER ENERGY COD ZA 6/4/500ML - V2 (Material - 108030)	80.80
-108168	MONSTER LOCO PUNCH ZA 6/4/500ML (Material - 108168)	77.74
-108152	MONSTER PINEAPPLE PUNCH ZA 6/4/500ML (Material - 108152)	76.92
108183	Monster Energy 6/4/330ML (Material 108183)	74.99